

COMMERCIAL OFFICE LEASE AGREEMENT

This Commercial Office Lease Agreement (the "Lease") is made as of **January 1, 2025** (the "Effective Date") by and between **Greenfield Property Holdings, LLC**, a Delaware limited liability company ("Landlord"), and **Northwind Analytics, Inc.**, a California corporation ("Tenant"), for premises known as **Suite 1200, 455 Market Plaza, San Francisco, California 94105**. This Lease shall be identified for reference as **Northwind Analytics – Suite 1200**.

1. Area/Square Footage Information

The Premises consist of Suite 1200 containing **8,500 rentable square feet** and **7,400 usable square feet**, yielding a common-area (load) factor of **14.86%**, measured in accordance with the **BOMA 2017** standard. Tenant's proportionate share of the Building (212,500 rentable square feet) is **4.0%**. The Premises include a separately demised **500 square foot storage area** in the basement.

2. Commencement/Expiration

The term is **sixty (60) months**. The **Commencement Date** is **January 1, 2025** and the **Expiration Date** is **December 31, 2029**. **Rent Commencement** occurs **March 1, 2025** following a two-month abatement period, and Tenant's anticipated **move-in date** is **February 15, 2025**.

3. Rent/Expiration

Base Rent is **\$28,500.00 per month** (\$342,000 annually, or \$40.24 per rentable square foot) payable **monthly** in advance. Base Rent escalates **three percent (3.0%)** on each anniversary of the Commencement Date. The final lease-year rent expires with the term on **December 31, 2029**.

4. Expense Schedule

This is a **modified gross** lease with a **2024 base year** for Operating Expenses and Real Estate Taxes. Estimated first-year operating expenses are **\$12.50 per rentable square foot**, reconciled annually within 120 days after each calendar year-end.

5. Expense/Recoverables

Tenant pays its **4.0% pro-rata share** of increases in Operating Expenses and Taxes over the base year. Controllable operating expenses are subject to an annual **cumulative cap of 5%**. Management fees are capped at **3% of gross revenues** and capital expenditures are amortized over their useful life with interest at **6%**.

6. Consumer Price Index (CPI)

Where applicable, adjustments reference the **CPI-U, All Urban Consumers, U.S. City Average (1982-84=100)** published by the Bureau of Labor Statistics, applied annually with a **floor of 2%** and a **ceiling of 5%**.

7. Improvements

Landlord provides a **Tenant Improvement Allowance of \$50.00 per rentable square foot** (\$425,000 total). Landlord delivers the Premises in **warm-shell** condition. Any unused allowance, up to **\$5.00 per rentable square foot**, may be applied to moving costs.

8. Force Majeure

Neither party is liable for delays caused by acts of God, war, terrorism, governmental restrictions, pandemics, labor disputes, or other causes beyond its reasonable control. Force majeure **does not** excuse the timely payment of Rent.

9. Lease Options

Tenant holds **one (1) option to renew** for an additional **five (5) years** at **95% of fair market rent**, exercisable by written notice not less than **nine (9) months** before expiration. Tenant also holds a one-time **right of first offer** on contiguous Suite 1250.

10. Signage/Exclusivity

Tenant is entitled to **building-standard suite-entry signage**, one listing on the lobby directory, and, so long as it leases at least **7,500 rentable square feet**, **non-exclusive eyebrow signage** on the building exterior, subject to Landlord and municipal approval.

11. Relocation Right

Landlord may relocate Tenant to comparable space of substantially equal size within the Building on **sixty (60) days'** prior written notice, with Landlord bearing all reasonable moving, build-out, and stationery reprinting costs.

12. Holdover

Holding over without Landlord's consent constitutes a tenancy at sufferance at **150% of the then-current Base Rent** for the first two months and **200% thereafter**, plus consequential damages after thirty (30) days.

13. Late Fees

Rent not received within **five (5) days** of its due date incurs a late charge equal to **5% of the overdue amount**, with a **\$250 minimum**. A \$35 fee applies to each dishonored payment.

14. Interest

Past-due amounts bear interest from the due date until paid at the lesser of **12% per annum** or the maximum rate permitted by law.

15. Brokerage Fees

Landlord shall pay the brokerage commission to **CBRE** (Landlord's broker) and **JLL** (Tenant's broker) pursuant to separate written agreements. Each party indemnifies the other against claims by brokers it engaged.

16. Landlord Restriction

Landlord covenants not to lease any other premises in the Building to a **direct competitor data-analytics business** while Tenant is not in default, and warrants Tenant's **quiet enjoyment** of the Premises.

17. Indemnification

Tenant indemnifies, defends, and holds Landlord harmless from claims arising in the Premises or from Tenant's negligence; Landlord provides a **reciprocal indemnity** for the common areas, in each case excluding the indemnitee's gross negligence or willful misconduct.

18. Rooftop/Telecom/Antenna

Tenant may install, at its cost, **one (1) satellite dish and supplemental telecom antennae** in a designated rooftop area, with screened access and a license fee of **\$500 per month**, removable at the end of the term.

19. Go Dark / Co-Tenancy

Tenant may **cease operations (go dark)** while continuing to pay Rent. If Building occupancy falls below **70%** for more than **twelve (12) consecutive months**, Tenant may pay **50% reduced rent** or terminate on ninety (90) days' notice.

20. ASC 842 / IFRS 16 Elections

For accounting purposes the parties acknowledge this is an **operating lease** under **ASC 842**. Tenant has elected the **short-term lease and low-value asset practical expedients where applicable** and uses an **incremental borrowing rate of 6.5%** to measure the lease liability.

21. Notices

All notices must be in writing and delivered by hand, nationally recognized overnight courier, or certified mail to Landlord at 455 Market Plaza, Suite 100, San Francisco, CA 94105 and to Tenant at the Premises, with a courtesy copy by email. Notice is deemed given on receipt or refusal.

22. Surrender/Restoration

Upon expiration Tenant shall surrender the Premises in good condition, broom-clean, ordinary wear and tear excepted, and shall remove its trade fixtures and any **required-removal alterations** identified by Landlord at the time of approval, repairing any resulting damage.

23. Security Deposit

Tenant has deposited a **security deposit of \$57,000.00** (two months' Base Rent), held without interest, which may be provided as an **unconditional letter of credit**. The deposit burns down to **\$28,500.00** after the 36th month absent any default.

24. Exclusivity/ Permitted Use

The Premises shall be used **solely for general office and software-development purposes** and for no other use. Tenant's use must comply with all laws, the certificate of occupancy, and recorded covenants.

25. Insurance

Tenant shall maintain **commercial general liability insurance of \$2,000,000 per occurrence / \$5,000,000 aggregate**, property insurance on its personal property and improvements at full replacement cost, workers' compensation, and **\$5,000,000 umbrella** coverage, naming Landlord as additional insured, with a mutual **waiver of subrogation**.

26. Estoppel/Subordination/Non-Disturbance

Tenant shall deliver an **estoppel certificate within ten (10) business days** of request. This Lease is **subordinate** to current and future mortgages, conditioned on the lender delivering a commercially reasonable **subordination, non-disturbance and attornment (SNDA)** agreement.

27. Sublease/Assignment

Tenant may not assign or sublet without Landlord's **prior written consent, not to be unreasonably withheld**. Landlord shares **50% of net sublease profits**. Transfers to an **affiliate or successor by merger** are permitted without consent.

28. Lease Audit Rights

Tenant may **audit Landlord's books for Operating Expenses within twelve (12) months** after receiving the annual reconciliation. If the audit reveals an **overcharge exceeding 4%**, Landlord pays the reasonable cost of the audit and refunds the overcharge.

29. HVAC/ Additional Usage

Landlord furnishes **HVAC during Building hours (7:00 a.m. - 6:00 p.m. weekdays, 8:00 a.m. - 1:00 p.m. Saturdays)**. After-hours HVAC is available at **\$75 per hour per zone**. Tenant maintains any supplemental units serving the Premises.

30. Sublease Information

As of the Effective Date there is **no existing sublease** affecting the Premises. Any future sublease shall be reported to Landlord with the subtenant's name, demised area, term, and rent within ten (10) days of execution.

31. Reciprocal Easement Agreement(REA)

The Building is subject to a recorded **Reciprocal Easement Agreement (REA)** dated June 1, 2008 governing shared parking, access drives, and common-area maintenance, to which this Lease is subordinate and with which Tenant shall comply.

32. Maintenance and Repairs

Landlord maintains the structure, roof, exterior, and building systems. **Tenant maintains the interior of the Premises**, including fixtures and non-structural elements, and pays for repairs caused by its acts. Tenant shall report needed repairs promptly.

33. Hazardous Materials

Tenant shall not use, store, or dispose of **Hazardous Materials** except customary office supplies in compliance with law, and indemnifies Landlord for any contamination it causes. Landlord represents the Premises are **free of known hazardous materials** as of delivery.

34. Utilities and Services

Electricity to the Premises is **separately metered** and paid by Tenant. Landlord provides water, sewer, elevator, common-area lighting, and **five (5) days per week janitorial service**. Tenant pays for telephone, data, and any excess-capacity consumption.

35. Other Critical Issues

Tenant is allotted **three (3) unreserved parking spaces per 1,000 rentable square feet** (26 spaces) at prevailing market rates and holds a one-time **early-termination option effective at the end of month 48** on nine (9) months' notice and payment of a termination fee equal to unamortized transaction costs plus four months' Base Rent.

IN WITNESS WHEREOF, the parties have executed this Lease as of the Effective Date first written above.

LANDLORD: Greenfield Property Holdings, LLC

By: _____

TENANT: Northwind Analytics, Inc.

By: _____